

HOME IMPROVEMENT CONTRACT

California Business & Professions Code §7159 - As Amended Effective January 1, 2026

YOU ARE ENTITLED TO A COMPLETELY FILLED-IN COPY OF THIS AGREEMENT, SIGNED BY BOTH YOU AND THE CONTRACTOR, BEFORE ANY WORK MAY BE STARTED.

Agreement Date:	2026-04-17	Contract / Estimate #:	1 / Est. EST-001-01
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PARTIES TO THIS AGREEMENT

OWNER / TENANT Gi and Ionut 1580 Waller Street 410-925-3546 juliegkim1@gmail.com	CONTRACTOR Cabrera Construction Samuel Cabrera 2752 Capistrano St, Antioch, CA 94509 Tel: (415) 359-5394 Email: cabr_contrs@yahoo.com Lic. #1135927 · B-General Building · B-General Building Insurance Co.: Evanston · (916) 482-9600
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NOTICE OF CANCELLATION may be sent to the Contractor at:
Samuel Cabrera · Cabrera Construction · 2752 Capistrano St, Antioch, CA 94509
Tel: (415) 359-5394 · Email: cabr_contrs@yahoo.com
(Per SB 517, effective Jan 1, 2026: cancellation may be sent by email, mail, or fax.)

PROJECT INFORMATION

Project Site Address:	1580 Waller Street, San Francisco, CA 94117
Project Description:	1580 Waller
Description of Work / Scope:	LABOR • Demolition (Qty: 1 ea)

(Include significant materials, equipment, fixtures to be used/installed. Attach additional sheets if needed.)

Approximate Start Date:	2026-04-01	Approximate Completion Date:	2026-07-01
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SUBCONTRACTOR DISCLOSURE (Required — AB 1327, Eff. Jan 1, 2026)

- ☐ No subcontractors will be used on this project.
- ☒ One or more subcontractors will be used on this project. See list below:

Subcontractor Name	License #	Classification	Scope of Work
Windows			Install Windows

CONTRACT PRICE & PAYMENT

Contract Price:	\$5,000.00	Finance Charge (if applicable):	\$0.00
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THE DOWN PAYMENT MAY NOT EXCEED \$1,000 OR 10% OF THE CONTRACT PRICE, WHICHEVER IS LESS.

Down Payment Amount:	\$1,000.00	Down Payment Due:	2026-05-01
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SCHEDULE OF PROGRESS PAYMENTS

The schedule of progress payments must specifically describe each phase of work, including the type and amount of work or services scheduled to be supplied in each phase, along with the amount of each proposed progress payment. **IT IS AGAINST THE LAW FOR A CONTRACTOR TO COLLECT PAYMENT FOR WORK NOT YET COMPLETED, OR FOR MATERIALS NOT YET DELIVERED. HOWEVER, A CONTRACTOR MAY REQUIRE A DOWNPAYMENT.**

Work / Phase Description	Amount Due (\$)	When Due / Milestone
1st Payment — Deposit – Project Start	\$1,000.00	2026-05-01
2nd Payment — Mid-Project Milestone	\$2,500.00	2026-06-01
3rd Payment — Final Payment – Completion	\$1,500.00	2026-07-01

Upon satisfactory payment for any portion of the work performed, the Contractor shall furnish the Owner a full and unconditional release from any potential lien claimant claim or mechanics lien (Civil Code §§8400 and 8404) for that portion prior to any further payment being made.

INSURANCE

WORKERS' COMPENSATION INSURANCE (check one):

- This Contractor has no employees and is exempt from workers' compensation requirements.
- This Contractor carries workers' compensation insurance for all employees.

COMMERCIAL GENERAL LIABILITY INSURANCE (check one):

- This Contractor does not carry commercial general liability insurance.
- This Contractor carries CGL insurance written by: Evanston · (916) 482-9600
- This Contractor is self-insured.

EXTRA WORK & CHANGE ORDERS

Extra work and change orders become part of this contract once the order is prepared in writing and signed by both parties **PRIOR** to commencement of any covered work. Each change order must describe: (i) the scope of the extra work or change; (ii) the cost to be added or subtracted from the contract; and (iii) the effect on the schedule of progress payments or completion date. The Owner may not require the Contractor to perform extra work without prior written authorization.

MECHANICS LIEN WARNING

Anyone who helps improve your property, but who is not paid, may record what is called a **mechanics lien** on your property. A mechanics lien is a claim, like a mortgage or home equity loan, made against your property and recorded with the county recorder.

Even if you pay your contractor in full, unpaid subcontractors, suppliers, and laborers who helped to improve your property may record mechanics liens and sue you in court to foreclose the lien. If a court finds the lien is valid, you could be forced to pay twice or have a court officer sell your home to pay the lien. Liens can also affect your credit.

To preserve their right to record a lien, each subcontractor and material supplier must provide you with a document called a 'Preliminary Notice.' This notice is not a lien. The purpose of the notice is to let you know that the person who sends you the notice has the right to record a lien on your property if they are not paid.

BE CAREFUL. The Preliminary Notice can be sent up to 20 days after the subcontractor starts work or the supplier provides material. **PROTECT YOURSELF FROM LIENS** by getting a list from your contractor of all subcontractors and material suppliers that work on your project. Consider paying with joint checks. For more information: www.cslb.ca.gov or call CSLB at 800-321-CSLB (2752).

TERMS AND CONDITIONS

Plans and Specifications:

The project shall be constructed according to the Plans, Drawings, and Specifications provided. Contractor shall be entitled to rely on their accuracy and may be entitled to a change in Contract Sum and Contract Time if they contain errors.

Permits:

Contractor shall obtain and pay for all required building permits. Owner shall be responsible for all taxes, assessments, and charges required by public agencies.

Property Insurance:

Owner shall purchase and maintain property insurance for the entire work at the site, written on an All-Risk policy form, and shall name Contractor as an additional insured through final payment.

Waiver of Subrogation:

Owner and Contractor waive all rights against each other, subcontractors, agents, and employees for damages caused by fire or other insured losses, to the extent covered by property insurance applicable to the work.

Right to Stop Work:

Contractor shall have the right to cease work on the project if any amount due to Contractor has not been paid when due.

Cleanup:

Contractor shall remove all construction debris and waste from the project site upon completion of work. Any property damage caused during the project shall be addressed by Contractor's insurance.

Delay:

Contractor shall be excused for delays caused by: acts of God, owner's negligence, owner's failure to make timely payments or process change orders, acts of separate contractors, public utility delays, material embargoes, labor disputes, fire, transportation delays, or other causes beyond Contractor's reasonable control.

Attorneys' Fees:

In any dispute relating to the interpretation or enforcement of this Agreement, the prevailing party shall be entitled to its costs and reasonable attorneys' fees.

Assignment:

Neither party shall assign rights or delegate duties under this Agreement without prior written consent of the other party.

Bankruptcy:

If either party files for bankruptcy or makes an assignment for creditors, the other party has the right to cancel this Agreement.

Bond:

The Owner or tenant shall have the right to require Contractor to procure a performance and payment bond.

CSLB:

Information about the Contractors' State License Board (CSLB): CSLB is the state consumer protection agency that licenses and regulates construction contractors. Use only licensed contractors. Visit www.cslb.ca.gov or call 800-321-CSLB (2752).

ARBITRATION OF DISPUTES

Any dispute arising out of or relating to the negotiation, award, construction, performance, or non-performance of any aspect of this Agreement shall be settled by binding arbitration in accordance with the Construction Industry Rules of the American Arbitration Association.

NOTICE: BY INITIALING BELOW, YOU ARE AGREEING TO HAVE ANY DISPUTE DECIDED BY NEUTRAL ARBITRATION AS PROVIDED BY CALIFORNIA LAW AND ARE GIVING UP YOUR RIGHT TO A COURT OR JURY TRIAL, INCLUDING RIGHTS TO DISCOVERY AND APPEAL. YOUR AGREEMENT TO THIS ARBITRATION PROVISION IS VOLUNTARY.

Owner Initials: _____

Contractor Initials: _____

RIGHT TO CANCEL**Cancellation Period (check one):**

- ☐ Three (3) Business Days — Standard
- ☐ Five (5) Business Days — Senior Citizens only
- ☐ Seven (7) Business Days — Disaster repair contracts only

You, the Owner, have the right to cancel this contract within the checked period above. You may cancel by emailing, mailing, faxing, or delivering a written notice to the Contractor at the address/email listed above by midnight of the last business day of the cancellation period after you received a signed and dated copy of the contract.

If you cancel, the Contractor must return to you anything you paid within 10 days of receiving the notice of cancellation. You must make available to the Contractor, in substantially as good condition as received, any goods delivered to you under this contract. If you fail to make the goods available, or if you agree to return them and fail to do so, you remain liable for performance of all obligations under the contract.

Acknowledgement of Receipt of Right to Cancel Notice:

Owner Signature: _____

Date: _____

ATTACHED DOCUMENTS

1. Notice of Cancellation Form (provided in duplicate)
2. Home Improvement Change Order Form
3. California Residential Contracts – Required Attachments and Checklists
4. _____
5. _____

AGREEMENT & SIGNATURES

THIS AGREEMENT IS ENTERED INTO AS OF THE DATE STATED ABOVE. THIS AGREEMENT EXPRESSLY INCORPORATES ALL TERMS AND CONDITIONS SET FORTH HEREIN AND ANY ATTACHMENTS OR EXHIBITS ATTACHED HERETO. THIS AGREEMENT IS EXECUTED IN AT LEAST TWO ORIGINAL COPIES — ONE DELIVERED TO CONTRACTOR AND ONE TO OWNER.

Owner Signature

Contractor Signature

Owner (Print Name & Title):
Gi and Ionut

Contractor (Print Name & Title):
Samuel Cabrera — Cabrera Construction

Second Owner Signature (if applicable)

Date: _____

Samuel Cabrera · Cabrera Construction · Lic. #1135927 · B-General Building · Tel: (415) 359-5394 · cabr_constr@yahoo.com · 2752 Capistrano St, Antioch, CA 94509

Thank you for choosing Cabrera Construction — Quality Craftsmanship You Can Trust.